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NEWS

15 March 2023

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Iraq: Government must match rhetoric on human rights with meaningful action

***Amnesty International received a response from the Office of the Prime Minister in Iraq on 2 April 2023. The full response can be read [here](#), with an unofficial translation provided. ***

The new government of Iraqi Prime Minister Mohammed Shia' al-Sudani must break with the failures of past governments related to justice, truth and reparation and address pervasive human rights violations in Iraq, Amnesty International said today in an [open letter](#).

The Prime Minister has on at least two occasions publicly committed to the protection of public freedoms and human rights. Yet less than several months since his administration took power, the ministry of interior has established [new mechanisms](#) to monitor “indecent content” on social media, which has already led to courts sentencing six people to prison for exercising their right to free speech.

The organization urged the government to ensure meaningful progress in the stalled accountability process for the 2019 crackdown on protests and prioritize long-standing

issues such as displaced people's access to livelihood, gender-based violence and death sentences issued after unfair trials.

"The true measure of a government's commitment to human rights is not in the promises it makes, but in the action it takes. The people of Iraq deserve more than empty rhetoric and endless cycles of abuse," said Aya Majzoub, Amnesty International's Deputy Director for the Middle East and North Africa.

"It is a worrying sign that just a few months in, the Al-Sudani government has started a campaign to crack down on "indecent content" online, resulting in people being prosecuted after posting harmless videos of themselves dancing and making jokes. Meanwhile, those who committed grave crimes like abductions, torture and killings in the context of the October 2019 protests are yet to be brought to justice."

Right to freedom of expression stifled

In January 2023, the Ministry of Interior set up a committee to monitor what it deems to be "indecent" social media content and refer individuals for prosecution under Penal Code articles criminalizing acts of "public indecency. It also set up "Balgh" (*report* in Arabic), a platform where people could report social media content that "violates public morals, contains negative and indecent messages, and undermines social stability".

The committee has referred at least 16 cases for criminal investigation by judicial authorities and from complaints on the "Balgh" platform. Criminal courts have already sentenced six individuals to prison over their social media posts and are investigating another eight. The AFP reported that some of the individuals who were prosecuted were known for creating content related to music and comedy.

Criminal courts continue to prosecute people for expressing critical political views. On 5 December 2022, a criminal court in Baghdad sentenced 20-year-old Haidar al-Zaidi to three years in prison over a tweet criticizing the deceased deputy commander of the Popular Mobilization Units (PMU). Al-Zaidi was sentenced under Article 226 of the Penal Code, which punishes any "insult to the National Assembly or the government or the courts or the armed forces or any other constitutional body or the public authorities or official or semi-official agencies or departments" by seven years imprisonment or a fine.

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The people of Iraq deserve more than empty rhetoric and endless cycles of abuse.

Aya Majzoub, Amnesty International

Al-Zaidi denied that he had posted the tweet. Al-Zaidi's arrest in December led to demonstrations in Nasiriya, Dhi Qar governorate, in which riot police fired live ammunition at the crowd, killing three protesters. Al-Zaidi has since been released and his charges dropped after the PMU withdrew the complaint against him, following a meeting between a PMU official and Al-Zaidi's family.

Prioritize justice, truth and reparation

During the protest movement which began in October 2019, **Amnesty International documented** a wave of deadly violations perpetrated by Iraqi security forces, including factions of the PMU. This brutal crackdown, which spanned the months of what is referred to as the “Tishreen” protests, resulted in hundreds of deaths and thousands of injuries including through targeted killings and torture. Survivors and family members seeking justice, meanwhile, have been subjected to attacks and intimidation, prompting some to flee abroad.

To date, there have been no public announcements on the results of the numerous committees established to investigate violations.

On 15 February, Prime Minister al-Sudani directed the acceleration of investigations into “the events that accompanied the October 2019 demonstrations”. Amnesty International calls on the Prime Minister to ensure that there is meaningful progress in accountability proceedings for these grave violations that took place almost three years ago and that abusers are swiftly brought to justice.

Address gender-based violence

Gender-based violence is a long-standing concern in Iraq, with Iraqi women’s rights organizations frequently documenting so-called “honour crimes” and other gender-based violence. The recent **murder** of 22-year-old Tiba Ali by her father in January highlighted the urgent need for Iraq to prioritize taking action against gender-based violence, including by passing a domestic violence law in line with international standards.

Displaced, neglected and forgotten

Displaced people in Iraq face many challenges, including arbitrary arrest, a lack of livelihood opportunities and obstacles in obtaining basic documentation. Between 2020 and 2021, the Ministry of Migration and Displacement hastily **closed** camps for internally displaced people, despite serious difficulties to their safe returns home. They continue to face **risks** of arbitrary arrest and other harassment by armed actors and security forces, a lack of livelihood opportunities, and obstacles in obtaining basic civil documentation that is necessary for freedom of movement and for access to many essential services.

Amnesty International is calling on the government to end this discrimination and ensure safe returns for all displaced persons, including those repatriated from north-east Syria.

Unfair trials and death sentences

Death sentences are still being handed down, with at least 20 sentenced to death since the Al-Sudani government took office.

Amnesty International opposes the death penalty in all cases without exception, regardless of the nature or circumstances of the crime; guilt, innocence or other characteristics of the individual; or the method used by the state to carry out the execution. The death penalty is the ultimate cruel, inhuman and degrading punishment.

“The Prime Minister has an opportunity to end Iraq’s brutal practice of sentencing people to death, often following unfair trials, by announcing a moratorium on all executions with a

view to abolishing the death penalty entirely,” said Aya Majzoub.

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